

Tentative Rulings and Resolution Review Hearings

April 14, 2025

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

COSSUTO VS. ESTATE OF MICHAEL GARRETT, ET AL

Case Number: CVPO21-0196776

Tentative Ruling on Motions to Compel Further Discovery Responses: Defendants 3 JRM Corporation and Garrett Abzun Inc. move separately to compel Plaintiff Denise Cossuto to provide further responses to Special Interrogatories and Request for Production. Specifically, they seek further responses to Special Interrogatories Nos. 1-3 and 8-16 and to Requests for Production Nos. 2 and 4-6. Finally, Defendants seek monetary sanctions as well. The Court note that the Replies were filed one court day late, however, the Court exercises its discretion to consider the Replies.

Merits of Motion: A party responding to interrogatories must respond fully and the response must be as complete and straightforward as the information reasonably available to the responding party permits. CCP § 2030.220(a). The propounding party may move for an order compelling further responses if the responses are evasive or incomplete. CCP § 2030.300(a)(1). The interrogatories at issue requested the facts, witnesses and documents upon which Plaintiff was basing her contentions related to the Decedent's use of an airplane in relation to the moving Defendants. The Court has independently reviewed each responses and finds that they are not evasive or incomplete. Plaintiff, as the responding party, had limited knowledge of the facts, witnesses and documents and she appropriately responded with the information available to her at the time of her responses. Defendants themselves, or other parties may have additional information, but Plaintiff did not. Plaintiff could not have provided more specific information than that which was provided. The Court finds that further responses of the interrogatories are not warranted. Turning to the Requests for Production, they sought documents identified in the Special Interrogatories. As the responses to the Special Interrogatories did not identify any documents, none were required to be produced. The request to compel further responses to the Requests for Production at likewise not warranted under the circumstances.

Sanctions: The imposition of sanctions is mandatory against the party that unsuccessfully makes or opposes a motion to compel further responses unless the Court finds that the party subject to sanctions acted with a substantial justification or other circumstances make the imposition of sanctions unjust. CCP §§ 2030.300(d) and 2031.310(h). The Court finds that Defendants did not act with substantial justification and finds that there are no circumstances present that would make the imposition of sanctions unjust. The Court finds that the requested hourly rate of \$500 per hour is excessive for this community. The Court finds that an hourly rate of \$350 is reasonable and that the requested 7.4 hours is reasonable. Sanctions will be awarded in the amount of \$2,590.

The motion is **DENIED**. Sanctions are imposed against Defendants in the amount of \$2,590. Defendants provided proposed Orders that will be modified to reflect the Court's ruling.

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on February 28, 2025 to Petitioners, John Wesley Bowen and Steven Christopher Jewett, in pro per, for failure to appear on February 24, 2025 as ordered January 23, 2025; failure to appear on January 13, 2025 as ordered on November 13, 2025; and failure to provide notice to Respondents, as ordered November 13, 2025. The Court has received return mail from each Petitioner multiple times from the address listed on the Petition, indicating Petitioners likely do not have notice of today's proceedings. This matter is continued to **Monday, June 2, 2025 at 8:30am in Department 63** for further proceedings regarding the Order to Show Cause re: Dismissal. The clerk is directed to mail a copy of today's minutes and the Order to Show Cause re: Dismissal to each Petitioner at 4412 Hoopa Path, Redding, CA 96003. **No appearance is necessary on today's calendar.**

LOCKE, ET AL. VS. STERNBERG, ET AL.

Case Number: 23CV-0203172

Tentative Ruling on Application to Appear Pro Hac Vice: Boris Zhadanovskiy., an attorney admitted to practice law in the State of Florida, seeks admission pro hac vice in order to represent Plaintiffs Timothy Locke and Deborah Metzger. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). However, the Application was filed on March 26, 2025 for a hearing on April 14, 2025. This does not comply with CCP § 1005. Additionally, there is no proof of service indicating when and how all the parties who have appeared in the matter were served. The Court notes that the County of Shasta was recently added as a defendant and has sought an extension of time.

The Application is **DENIED** without prejudice. Plaintiffs submitted a proposed Order that will be modified to reflect the Court's ruling. In the alternative, Plaintiffs may appear and request a continuance of the hearing in order to provide proper notice.